REPORTABLE (38)

MAKHOSONKE MOYO
v
(1) TREGER PRODUCTS (PRIVATE) LIMITED (2) CAVIN NKIWANE N.O (3) FRITZ MAWOVERA

SUPREME COURT OF ZIMBABWE
MAVANGIRA JA, CHIWESHE JA & CHITAKUNYE JA
HARARE: 25 MARCH 2026

M. E. P. Moyo, for the appellant

Mrs *R. Mabwe,* for the first respondent

No appearance for the second and third respondents

MAVANGIRA JA:

1. This is an appeal against the whole judgment of the Labour Court (the court *a quo*) wherein it dismissed an application for review by the appellant. The appellant sought a review of the disciplinary proceedings that had taken place before the second respondent in which he had been found guilty of wilful disobedience to a lawful order.

2. After hearing the parties, the Court issued the order stated in para 40 (*infra*).

FACTUAL BACKGROUND

3. The first respondent is a company duly incorporated in terms of the laws of Zimbabwe. The second respondent is cited in his official capacity as a disciplinary authority of the first respondent who presided over the appellant's disciplinary hearing. The third respondent is cited as a member of the appeals committee of the first respondent.

4. The appellant was formerly employed by the first respondent as a systems analyst. He was charged with contravening s 4 (a) of the Labour (National Employment Code of Conduct) Regulations, 2006 (SI 15 of 2006), which proscribes any act, conduct, or omission inconsistent with the fulfilment of the express or implied conditions of an employee's contract.

5. The allegations against the appellant were that, during the period extending from March 2022 to February 2023, he recommended the purchase of computers from iThinkSystems (Pvt) Ltd, a company whose physical address was unknown. He allegedly sourced quotations for the procurement of these computers without availing the company's address. It was further alleged that the prices charged by iThinkSystems (Pvt) Ltd were excessively high in comparison to those of other suppliers who offered similar products. It was accordingly alleged that the appellant had failed to exercise due diligence in recommending the computer supplier. Furthermore, the appellant was accused of concealing the fact that he was related to one Charles Moyo, who was director of iThinkSystems (Pvt) Ltd and whose surname was the same as his.

6. The appellant was also charged under s 4 (b) of SI 15 of 2006 with willful disobedience of a lawful order. The allegations were that on Wednesday, 22 March 2023, the finance director of the first respondent instructed the appellant to explain, by way of a written affidavit, his relationship with Mr Charles Moyo, but he refused to comply. A disciplinary hearing was subsequently conducted. In his defence, the appellant denied recommending the purchase of computers from iThinkSystems (Pvt) Ltd, contending that he was not responsible for recommending suppliers. He further asserted that the address of

iThinkSystems was known, but that during the period of investigations the company had temporarily relocated pending renovations that were being carried out at its previous premises.

7. The appellant also denied that it was his duty to carry out due diligence on supplier recommendations, arguing that such responsibility lay with the purchasing and creditors department. He further denied being related to Mr Charles Moyo. In respect of the second charge, the appellant submitted that on 22 March 2023 he had been advised of an ongoing police investigation into the matter, following which he was instructed by the first respondent to depose to an affidavit explaining his relationship with Mr Charles Moyo. The appellant averred that, upon being informed of the police involvement, he indicated that he required legal representation before responding. The appellant thereafter signed the affidavit after three days.

8. The disciplinary authority found that it was not the appellant's duty to conduct due diligence or a background check on iThinkSystems (Pvt) Ltd. Consequently, the appellant was found not guilty of the first charge of misconduct. However, the disciplinary authority found that the appellant had disobeyed the lawful instruction of the finance director and was therefore guilty on that score. The disciplinary authority recommended the dismissal of the appellant. He was thus dismissed from employment. The appellant thereafter unsuccessfully appealed to the appeals committee.

9. Aggrieved by the dismissal of his appeal, the appellant filed an application for review with the court *a quo*. The appellant contended that his dismissal was improper. In particular, he argued that the instruction issued by the Finance Director was not lawful, as it compelled

him to incriminate himself, thereby infringing his rights under s 70 (1) (i) of the Constitution of Zimbabwe, 2013. The appellant further submitted that he had requested time to seek legal advice before deposing to an affidavit containing information that could potentially incriminate him. He also argued that the disciplinary authority relied on documents that had not been availed to him prior to the hearing. In this regard he referred to clock-in and clock-out records for the day in question, which records were used to draw inferences regarding the time required to depose to an affidavit. Additionally, the appellant averred that he had been denied an opportunity to give evidence, despite having requested to testify during the disciplinary proceedings. On these bases, the appellant sought an order remitting the matter to the disciplinary authority.

10. The first respondent argued that the appellant was raising, for the first time before the court *a quo*, the issue of self-incrimination. The first respondent further argued that the disciplinary authority was not bound by ordinary rules of evidence provided its procedures aligned with natural justice. It further averred that the matter had been properly dealt with by the disciplinary authority.

11. The court *a quo* held that the order given by the finance director was reasonable and lawful. It found that the right provided for in s 70 (1) (i) of the Constitution applies only to accused persons and not to employees in disciplinary proceedings. The court *a quo* further held that the appellant's disobedience of the order was willful. It also held that the appellant made a 'serious' decision not to obey a lawful order.

12. The court *a quo* also found that the disciplinary authority had relied on documents which were not availed to the appellant prior to the hearing. However, it concluded that this

irregularity was not so gross as to vitiate the proceedings. Consequently, the court *a quo* dismissed the application for review.

THIS APPEAL

13. Aggrieved by the decision of the court *a quo*, the appellant appealed to this Court on the following grounds of appeal:

1. The court *a quo* committed such a gross error in its findings of fact as to amount to a matter of law, in finding that the right of self-incrimination in terms of the Constitution, did not apply to the circumstances appellant found himself in when it was clear from the proceedings that a crime had been reported against the appellant by the first respondent and the instruction allegedly given in charge violated the appellant's right to self-incrimination as he was now an accused person.

2. The court *a quo* erred on a matter of law in making a conclusion that a presiding officer can *mero motu* take any record it considers "official" and use it to the prejudice of a person undergoing a hearing, without giving that person a chance to challenge that official record in the course of proceedings.

3. The court *a quo* grossly erred at law in dismissing appellant's review while not attempting to address a ground of appeal raised before it or alternatively by concluding that it is unnecessary for a person undergoing a hearing to be heard if represented and is given a chance to cross-examine witnesses led against him.

The appellant seeks the following relief:

1. The appeal be and is hereby allowed with costs.

2. The judgment of the court *a quo* be and is hereby set aside and substituted with the following:

    a. The review succeeds with costs.

    b. The second respondent's conviction and dismissal of 24 April 2023 and third respondent's dismissal of 18 May 2023 be and are hereby set aside.

    c. The charge of willful disobedience to a lawful order be and is hereby referred back for a hearing *de novo* before a different disciplinary authority.

SUBMISSIONS ON THE MERITS

14. At the commencement of the appeal, Mrs *Mabwe*, counsel for the first respondent raised preliminary points. She submitted that the appeal was defective for failure to comply with r 65 (3) (d) of the Supreme Court Rules, 2025 (the Supreme Court Rules). Counsel argued that the relief sought by the appellant was not exact. In this regard, she submitted that the appellant sought the setting aside of a decision allegedly made on 24 April 2023, yet no such decision appears on the record. She further contended that para (i) of the determination of the disciplinary authority was granted in the appellant's favour, and as such, the appellant could not competently appeal against a finding made in his favour. Counsel emphasized that the review application before the court *a quo* had been directed at the entirety of the proceedings before the disciplinary authority, and not selective aspects thereof.

15. Counsel also took issue with para 2 of the relief sought, which seeks to set aside the dismissal purportedly effected by the second and third respondents. She submitted that this was a misdirection, as these respondents merely made recommendations and did not effect the dismissal. It was the first respondent, as the employer, who made the decision to dismiss the appellant. On this aspect, counsel argued that s 7 of SI 15 of 2006, read together with s 12B of the Labour Act, makes it clear that the power to dismiss an

employee vests in the employer. On this basis, counsel maintained that the relief sought by the appellant was not exact and that the appeal was therefore defective.

16. In response, Mr *Moyo,* counsel for the appellants, submitted that the preliminary objections raised by the first respondent had no merit. Counsel conceded that there was no decision made on 24 April 2023, but rather on 20 April 2023. He argued that this incorrect reference could be cured by an amendment and did not make the relief sought inexact. He argued that there was compliance with the rules. Mr *Moyo* further asserted that the second respondent, as a disciplinary authority, was cited in his official capacity. He argued that a disciplinary authority was an extension of an employer and as such a review of the second and third respondents' decision would result in a review of the first respondent's decision. He argued that the disciplinary authority could not be divorced from the employer.

17. After hearing submissions on the preliminary objections, we directed the parties to make submissions on the merits.

18. On the merits, Mr *Moyo* submitted that when the financial director asked the appellant to depose to an affidavit, the appellant was thereafter detained by the police. He submitted that the affidavit was eventually commissioned only after legal intervention. Counsel further submitted that the appellant was asked to depose to the affidavit around the time the police had summoned him for questioning. He argued that the court *a quo* erred in finding that s 70 (1) (i) of the Constitution did not apply in light of the fact that there were ongoing criminal proceedings. Counsel maintained that the court *a quo* did not consider the context in which the request was made. He further asserted that the disciplinary authority referred to documents that were never availed to the appellant. The disciplinary authority thus

ought not to have had any regard or taken notice of such documents. He further argued that the appellant was denied a fair hearing as he was not afforded an opportunity to present his case. It was also his submission that the legal representative of the appellant, before the disciplinary authority, requested for the appellant to testify but the request was turned down as the second respondent indicated that the proceedings had been terminated. Counsel finally argued that the court *a quo* erred in finding that the disciplinary authority had a right to regulate its own proceedings.

19. *Per contra*, Mrs *Mabwe,* for the first respondent, submitted that the appellant's contention was that the order issued was unlawful on the basis that it amounted to self-incrimination, contrary to s 70 (1) (i) of the Constitution. She argued that the lawfulness of the order was a substantive issue which could not be determined on appeal but ought properly to be ventilated on review. She further submitted that this issue was not raised during the disciplinary proceedings but was only introduced at the stage of the review application before the court *a quo*. Counsel maintained that the appellant had been given a lawful order, which he willfully disobeyed. In her view, the appellant was not entitled to refuse to comply with the order. He ought to have complied and subsequently raised the issue of the affidavit having been deposed to under duress.

20. On the issue of reliance on external documents, counsel submitted that the appellant ought to have raised an objection at the time the second respondent referred to such documents. Counsel further argued that the appellant waived his right to be heard when his legal representative indicated that the defence placed on record constituted their full case.

ISSUES FOR DETERMINATION

21. This appeal raises the following issues:

    1. Whether or not the relief sought by the appellant is exact and compliant with r 65 (3) (d) of the Supreme Court Rules.
    2. Whether or not the court *a quo* erred in holding that the disciplinary proceedings were conducted in a fair manner.

Whether or not the appellant's relief sought is exact and compliant with r 65 (3) (d) of the Supreme Court Rules

22. The first issue for determination is whether the relief sought by the appellant is exact, as required under r 65 (3) (d) of the Supreme Court Rules. Rule 65 (3) (d) requires that an appellant must clearly and precisely define the relief sought. This is so in order to enable the Court and the respondents to know the exact nature of the claim. The first respondent's attack focuses primarily on three aspects of the relief.

23. The first aspect is that the appellant seeks to set aside a decision allegedly made on 24 April 2023, when no such decision exists on the record. The respondent submits that this mis-description creates uncertainty as to the precise determination being challenged.

24. The second is that the appellant purports to appeal against para (i) of the disciplinary authority's determination, which was in his favour. The respondent argues that an appellant cannot competently appeal against a finding that benefits him, and that including such a paragraph renders the relief ambiguous.

25. The third is that the relief seeks to set aside the dismissal allegedly effected by the second and third respondents. The respondent contends that this is a misdirection, as these respondents merely made recommendations, while the power to dismiss rested solely with

the first respondent as the employer. The inclusion of the second and third respondents in this regard, it was argued, further renders the relief imprecise and misleading.

26. It is against this background that the Court now considers whether the relief as framed satisfies the requirement of exactitude under the rules. In *Tendai Bonde* v *National Foods Limited & Ors* SC 11/21 the Court stressed the need for relief sought to be exact in nature. The Court, at p 9, stated as follows:

> "The phrase 'exact nature of the relief sought' means that an appellant must inform the Court of the relief he/she wants. The Supreme Court's mandate is to examine the correctness or otherwise of a decision of the lower court. In doing so the court is guided by the relief sought by the appellant. The need for the relief sought on appeal to be exact cannot be over emphasized."

27. Concerning the first issue, the appellant seeks to set aside a decision allegedly made on 24 April 2023. An examination of the record shows that no decision was made on that date, the actual decision was made on 20 April 2023. In *University of Zimbabwe* v *Jirira & Ors* SC 45/13 the Court held as follows at p 3:

> "Turning to the second point, it is trite that an appeal must be directed against the actual decision that is appealed against."

28. During argument, the appellant conceded that the date in the notice of appeal was incorrect and suggested that this could be cured by an application for amendment. This was a futile submission in view of the established position that a fatally defective notice of appeal cannot be amended. The identification of the impugned decision is not a matter of form but of substance, as it defines the scope of the appeal and the issues for determination. Where a notice of appeal mis-identifies the decision sought to be set aside, it creates uncertainty as to the subject matter of the appeal and prejudices the respondent, who is

entitled to know the exact case to meet. It also places the Court in a position where it cannot, with precision, determine the correctness or otherwise of the decision under challenge.

29. In the present case the wrong description remains material. The notice of appeal does not properly identify the decision being appealed against and this defect goes to the root of the requirement that the relief sought be exact. Accordingly, the mis-dating is not a mere technical irregularity, but one that renders the relief inexact and the appeal fatally defective.

30. Further, the appellant cannot seek to set aside the entire disciplinary order on the basis that he was dissatisfied with one component of it. It is a well-established principle in appellate jurisprudence that a litigant cannot appeal against an order or finding which is beneficial to him. In *MEC for Finance: Kwazulu-Natal & Anor* v *Dorkin NO & Anor* [2008] 6 BLLR 540 (LAC) the court held as follows:

> "With regard to costs I have been tempted to award costs against the second respondent because the second appellant has had to come to court to seek to alter the sanction imposed upon the second respondent but, I think that, having obtained a sanction of final written warning which was not his decision but that of the first respondent – he was entitled to come to Court and seek to defend it."

31. An appeal or review is a remedy for a person aggrieved by a decision; where no grievance exists in respect of a particular part of a decision, that part cannot be the subject of an appeal or review. Paragraph (i) of the disciplinary authority's determination was in his favour. By attempting to nullify the whole order, including parts that were correctly decided in his favour, para 2 of the relief seeks more than what the appellant is legally entitled to and is therefore inexact.

32. Paragraph 2 of the relief sought by the appellant seeks to set aside the dismissal allegedly effected by the second and third respondents. This aspect of the relief is directly challenged by the first respondent and raises an important legal principle.

33. The record clearly establishes that the second and third respondents acted only in their capacities as recommenders or as part of the disciplinary process. We agree with Mrs *Mabwe* that the second and third respondents did not possess the authority to dismiss the appellant. The power to dismiss an employee rests solely with the employer, in this case, the first respondent. As such, attributing the dismissal to the second and third respondents is legally incorrect and renders the relief imprecise. The wording in s 12B of the Labour Act [*Chapter 28:01*] makes it clear that it is the employer who bears the obligation to justify a dismissal and to show that it was effected in terms of an applicable code. The statutory framework thus places the act of dismissal squarely at the door of the employer, as it is the employer who terminates the employment relationship and must answer for its fairness. The disciplinary authority, by contrast, merely conducts the inquiry and makes findings or recommendations within the employer's internal processes. The decision by the disciplinary authority is couched as follows:

> "In the result,
>
> 1. I find Makhosonke Andropov Moyo NOT GUILTY of charges 1.1 and 1.2 with reasons so given above.
>
> 2. I hereby find Makhosonke Andropov Moyo GUILTY for misconduct charge,
>
> > 'Willful disobedience to a lawful order and hence I recommend the maximum penalty of dismissal from employment with effect from the 31st of March 2023.'" (*sic*)

34. The determination of the disciplinary authority above further underscores this position. In its findings, the disciplinary authority expressly stated that it found the appellant not guilty of certain charges, but guilty of "wilful disobedience to a lawful order," and proceeded to recommend the maximum penalty of dismissal. The language employed is instructive. The disciplinary authority did not purport to dismiss the appellant, but merely made a recommendation as to the appropriate sanction. This makes it clear that the ultimate decision to terminate the appellant's employment lay with the employer.

35. The first respondent, as employer, communicated to the appellant in the following terms:

> "In line with the recommendations from the Disciplinary Authority regarding misconduct charge for "wilful disobedience to a lawful order"; you are hereby dismissed from employment with effect from 31 March 2023."

36. This determination by the employer further clarifies the position. The first respondent expressly stated as follows, "in line with the recommendations from the Disciplinary Authority… you are hereby dismissed from employment." This wording makes it clear that the dismissal was effected by the employer, acting upon the recommendation of the disciplinary authority. The disciplinary authority itself did not terminate the appellant's employment, it merely recommended a sanction. The legal act of dismissal was therefore that of the first respondent. In the circumstances, the appellant's attempt to attribute the dismissal to the second and third respondents is misplaced.

37. The Court agrees with the first respondent that the appellant's relief sought lacks precision and clarity. It mis-attributes decision-making authority and improperly seeks to set aside determinations that were favourable to the appellant, rendering the relief defective. This Court therefore finds that the notice of appeal is fatally defective.

Whether or not the court *a quo* erred in holding that the disciplinary proceedings were conducted in a fair manner.

38. Although the Court has found that the relief sought by the appellant is not exact and that the appeal is therefore fatally defective, the Court, in the exercise of its review powers and discretion in terms of s 25 of the Supreme Court Act [*Chapter 7:13*] further considers whether the disciplinary proceedings were conducted in a fair manner. It notes that the disciplinary authority failed to consider the appellant's request to seek legal advice. Reliance was placed on documents not availed to the appellant. The appellant was curtailed in the presentation of his defence. These were gross irregularities that speak to the disciplinary proceedings not being conducted in a fair manner.

DISPOSITION

39. This Court finds that the appeal is defective for want of compliance with r 65 (3) (d) of the Supreme Court Rules, in that the relief sought is not exact. The preliminary point raised by the first respondent has merit. The matter will thus be struck off the roll. Notwithstanding, the Court will exercise its review powers in terms of s 25 of the Supreme Court Act as the disciplinary proceedings were afflicted and consequently vitiated by material irregularities, in particular the failure by the disciplinary authority to consider the appellant's request to seek legal advice, the reliance on documents not availed to the appellant and the curtailment of the appellant's opportunity to fully present his defence. These irregularities go to the root of the fairness of the proceedings and cannot be sustained. Accordingly, the proceedings cannot stand and fall to be set aside.

40. It is for these reasons that on 25 March 2026, after hearing the parties, this Court issued the following order:

1. The appeal be and is hereby struck off the roll.
2. In the exercise of this Court's review powers under s 25 of the Supreme Court Act [*Chapter 7:13*], the decision of the Labour Court in case number LC/B /114/23 is hereby set aside and substituted with the following:
    "i. The application for review be and is hereby allowed with no order as to costs.
    ii. The proceedings before the appeals officer dated 18 May 2023 be and are hereby set aside.
    iii. The proceedings before the disciplinary authority dated 20 April 2023 be and are hereby set aside.
    iv. The matter is remitted for a hearing *de novo* before a differently constituted disciplinary authority."
3. There shall be no order as to costs.

CHIWESHE JA : I agree

CHITAKUNYE JA : I agree

Nkomo & Sibanda Legal Practitioners, appellants' legal practitioners

Coghlan & Welsh Legal Practitioners, 1st respondent's legal practitioners